

Clopton; and on February 3, the parliament having met, the five lords who acted as appellants, viz., the Duke of Gloucester, and the Earls of Arundel, Nottingham, Derby, and Warwick, delivered in no less than thirty-nine articles of impeachment, charging the accused with encroaching to themselves royal power by enslaving the king and blemishing his prerogative; and detailing various acts in proof of their guilt. Not the least prominent among these was the constraint they had put upon the justices to set their hands to the answers to the unconstitutional questions which had been propounded to them; and their endeavours by virtue thereof to get the lords and others, who had agreed to make the ordinance in the last parliament, attainted as traitors. All of the appellees, except Brambre who was in custody, were pronounced guilty for default of appearance; and the duke, the earl, and Tresilian were sentenced to the death of traitors, and to forfeit their property to the king; the archbishop's temporalities being also taken into the king's hands.¹

Nicholas Brambre was next brought forward to undergo his trial; and while it was proceeding, Tresilian was taken and brought before the parliament. The circumstances of his capture are related with some slight variations. The king had joined the Duke of Ireland at Bristol; and being desirous of knowing what proceedings were contemplated by his uncles at Westminster, Tresilian had volunteered to undertake the perilous journey. He reached London without discovery, and taking up his lodging in an alehouse, or according to another account, at an apothecary's, opposite the palace gate, he had enconced himself in a window so that he could observe every one who passed. His disguise, however, though sufficient to mislead ordinary observers, could not deceive a squire of the Duke of Gloucester's who had

¹ Rot. Parl. iii 229—237.